

26STCV04042 26STCV04042

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-07-02

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Case Number: 26STCV04042 Hearing Date: July 2, 2026 Dept: 732

LBS Financial Credit Union v. Ara Harutyunyan, et al.

Thursday, July 2, 2026

CASE NUMBER: 26STCV04042

UNOPPOSED

Plaintiff LBS Financial Credit Union's Motion to Seal Complaint

Facts: This is an action for breach of contract. The Complaint alleges as follows. Plaintiff LBS Financial Credit Union ("Plaintiff") is the owner of a loan to Defendant Ara Harutyunyan ("Defendant") made to purchase a vehicle. (Complaint ¶¶ 5–6.) Defendant has defaulted under her payment obligations under the loan agreement. (Complaint ¶¶ 7–9.)

Procedural History: Plaintiff filed the Complaint on February 6, 2026, alleging one cause of action for breach of contract.

A request for dismissal was filed on March 30, 2026, and dismissal was entered on April 1, 2026.

Plaintiff filed the present motion to seal on May 22, 2026. No opposition has been filed.

Discussion:

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The court may order that a record be filed under seal only if it expressly finds facts that establish:

- (1) There exists an overriding interest that overcomes the right of public access to the record;
- (2) The overriding interest supports sealing the record;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

(California Rules of Court ("CRC") Rule 2.550, subd. (d).)

A party moving to seal records must make a sufficient evidentiary showing to overcome the presumed right of public access to the documents. (see *Huffy Corp. v. Superior Court* ("Huffy") (2003) 112 Cal.App.4th 97, 108.)

Plaintiff LBS Financial Credit Union ("Plaintiff") moves to seal the Complaint in this action on the grounds that through inadvertence, the Complaint contains personal identifying information of Defendant Ara Harutyunyan ("Defendant"), such as her birth date, social security number, and address. (Rocha Decl. ¶ 4.)

Plaintiff indeed identifies private information for which a sealing order may be warranted. But an order sealing the entire complaint is overbroad. Under CRC Rule 2.550, the proposed sealing must be "narrowly tailored" and there must be no "less restrictive means" to protect the interest identified. Plaintiff does not explain why the private information it identifies may not simply be redacted from the Complaint, while the rest remains open to the public. This approach is more narrowly tailored to protect the privacy interests involved.

Accordingly, the hearing on the present motion is CONTINUED. Plaintiff is directed to indicate with specificity those portions of the Complaint containing personal identifying information for which an order to seal is warranted, and to file as an exhibit a version of the Complaint that is redacted of those portions.

Superior Court of California

County of Los Angeles

Department 732

LBS FINANCIAL CREDIT UNION.,

Plaintiff,

v.

ARA HARUTYUNYAN., et al.,

Defendants.

Case No.: 26STCV04042

Hearing Date: July 2, 2026

[TENTATIVE] RULING RE:

Plaintiff LBS Financial Credit Union's Motion to Seal Complaint

Plaintiff LBS Financial Credit Union's Motion to Seal Complaint is CONTINUED to permit Plaintiff to indicate with specificity those portions of the Complaint containing personal identifying information for which an order to seal is warranted, and to file as an exhibit a version of the Complaint that is redacted of those portions.

Plaintiff to give notice.

Dated: July 2, 2026

Hon. Richard S. Kemalyan

Judge of the Superior Court